

PURCHASE ENQUIRY
HINDUSTAN COPPER LIMITED
(A Govt of India Enterprise)
KHETRI COPPER COMPLEX, KHETRI NAGAR – 333 504
DISTT.JHUNJHUNU (RAJ) INDIA
E-Mail : indraj_s@hindustancopper.com
FAX : 01593 220038 , TEL : 220065, 9460512675
TENDER DOCUMENT

No.HCL/KCC/PUR/2017/GS/10/9354/RFQ-6879

Dated: 05/06/2017

Last date& time of submission of Techno-Commercial offer : **23/06/2017 at 2.30 p.m.**
Date & time of opening tender : **23/06/2017 after 2.30 p.m.**

To M/s. _____ _____ _____	Please note that your quotation should consist of the following basic information: 1. Validity 2. Applicable Tax & Excise Duty 3. Delivery Period 4. Payment terms 5. Category: SSI/SC/ST (Indicate if applicable)
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Sub: Procurement of Lead wool

Dear Sirs,

Offer invited in Single part bid system from **established suppliers** for supplying Lead wool to our Khetri Copper Complex Unit, Khetrinagar, Distt. Jhunjhunu (Rajasthan). You are requested to submit your offer in sealed envelope duly super-scribing enquiry No. date and opening date on the top of the envelope for the following items conforming to stipulated description and specification as per terms & conditions attached herewith:

Scope of Supply:-

Sl. No	Material code	Description	Unit	Qty
1	191000017	WHITE METAL LEAD BASE-75% LEAD 15% ANTIMONY AND 10% TIN	KILOGRAM	30

Note: If there is any deviation in the offered specification compare to our NIT specification, such offers out rightly rejected & your name will be deleted from our mailing list for tendered item in future enquires.

SPECIAL TERMS & CONDITIONS:

- SUBMISSION OF OFFER:-** Tenderer should submit their offer in **Single bid system**. Offer should be sealed in an envelope and shall be super scribing on the top of the envelope as enquiry No & due date of opening and it should reach us on or before due date. **ENVELOPE WITHOUT SUPERSCRIBING OUR ENQUIRY No DATE AND DUE DATE ARE LIABLE TO BE REJECTED.**

- (i) The offers against this LTE tender from suppliers to whom enquiry has been issued shall only be considered. Offers from any other party shall be treated as unsolicited.
 - (ii) Whoever is interested to be registered, a supplier of these items should fill-up the vendor registration form, hosted on the HCL website. The normal registration process shall, thereafter be followed for registering the eligible suppliers. This information is solely for the purpose of exploring the possibility of enhancing the vendor base, wherever required and should not be considered as a purchase enquiry. Purchase enquiry in future may be issued to such suppliers, if registered.
 - (iii) When LTE tender issued to a manufacturer in that case, if any dealer authorized to quote on their behalf, a copy of such authority letter to be endorsed to HCL
2. **PAYMENT TERM:** The Company shall release the payment to the supplier electronically. The e-payment facility is available under INTERNET mode through SBI (RTGS). The supplier shall submit duly filled Bank Mandate form in duplicate with due authentication from their banker along with copy of cancelled cheque to avail e-payment facility. The prescribed Mandate form is enclosed.
Payment shall be released after 30 days credit on receipt & acceptance of material.
PLEASE MENTION YOUR E-MAIL ADDRESS & contact No. with name of person in your offer. THIS IS ESSENTIAL FOR E-PAYMENT & further correspondence.
3. **DELIVERY:** Please mention the earliest delivery period in your offer. Material required on urgent basis.
4. **Guarantee/ Warranty:** Please mention your standard **Guarantee / Warranty period** from the date of receipt of material at our Central store.
5. **Validity:** Offers should be valid for **90 days** from the date of tender opening.
6. **Prices:-** The offered rate must be firm & fixed during the period of contract.
7. **Taxes:** All taxes like Excise duty & CST/VAT should be clearly mentioned. In case of inclusion of taxes in the basic price, the % or value per unit should be specified in the price bid.
8. Submit a signed copy of our NIT as a token of acceptance of terms & conditions of our NIT or confirm in your offer that all the NIT terms & conditions are acceptable.
Price quoted in your offer should be on **FOR destination on door delivery basis** at our KCC Central store, Khetri Nagar. Rate of discount if any is to be indicated clearly in your offer. All other terms & conditions shall be as per our **GENERAL TERMS & CONDITIONS OF ENQUIRY**.
HCL reserves the right to reject any or all tenders entirely at their discretion without assigning any reason thereof and also reserves the right to place order in part or full on different suppliers.
Offers received Late/delayed due to any reason will not be considered.
9. Quantities variation applicable = +/-10%

(Indraj Singh)
Dy. Manager (Materials)



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KHETRI NAGAR - 333 504
DISTT.JHUNJHUNU (RAJ)

Email: indraj_s@hindustancopper.com
Fax: 01593 220038/ 220002
TEL:01593 220065/220006/ 220305/9460512675
Web site: www.hindustancopper.com

RFQ-General Terms and conditions

ANNEXURE-I

Instructions for Bidders, who wish to respond to our Enquiry for supply of Material to KCC.

OFFERS IN SEALED ENVELOPE DULY SUPERSCRIBING ENQUIRY NUMBER, DATE AND DUE DATE SHOULD BE SENT TO CHIEF MANAGER (MATERIALS) AT THE ABOVE ADDRESS. ENVELOPES WITHOUT SUPERSSCRIPTION OF ENQUIRY NO., DATE AND DUE DATE MAY NOT BE CONSIDERED. BESIDES THIS, OFFER RECEIVED THROUGH E-MAIL / FAX OR IN OPEN MAIL WILL NOT BE CONSIDERED.

ANY ORDER RESULTING FROM THIS ENQUIRY SHALL BE GOVERNED BY THE FOLLOWING STANDARD TERMS & CONDITIONS IN ADDITION TO THOSE MENTIONED IN THE ENQUIRY:-

1. All changes in the NIT including the extension of date of opening etc., if any, would be posted only on the website of the company " www.hindustancopper.com " and the prospective bidders should keep in touch with the company's website for updates before submitting their bids.
2. This is an Enquiry and must not be treated as an order.
3. Quotations are called in accordance with the drawing, specifications or pattern and the quotation so submitted shall be deemed to be an acknowledgement by the seller that he has fully understood the details thereof.
4. No quotation will be considered which is received after the Due date & Time. The time of receipt of tenders is latest by 2.30 PM on the due date and the said tender will be opened immediately thereafter. Late / delayed tenders shall not be considered.
5. Tenders will be opened on the next working day at the scheduled hours in case the last date of receipt of tender is declared to be a holiday, for any reason whatsoever.
6. All entries in the quotations should either be typed or written legibly in ink without any ambiguity and should be free from corrections and erasers.
7. If mentioned in the special terms & conditions for requirement of sample along with offer, in that case free samples should be submitted by the seller at his expense pre-paid, along with the tender.
8. **Delivery:** The delivery period shall be deemed to be an essence of the Contract. We may take delivery of material in phased manner as per our requirement.
9. The price by the seller shall in no case exceed the controlled Price, if any, fixed by the Government or the price permissible under the law. In case, the rates quoted are as per DGS & D rate contract / Govt. rates, bidders should submit documentary evidence along with their offer.
10. **Prices:**
 - a) The rates quoted should be on F.O.R. destination at our central store basis and should be inclusive of packing, forwarding, freight and insurance.
 - b) In case of ex-godown or F.O.R. station of dispatch price, all the applicable charges apart from the cost of materials should be shown separately.
 - c) Cash/Trade/Quantity discount, if any, should be shown separately. Similarly, duties & taxes, if any, should also be shown separately.
 - d) Material quoted should be dispatched by Road transport only.
 - e) In case of Ex works prices and freight charges not mentioned, then 2% of Basic order value or actual if available will be considered as freight charges for L-1 Calculation.
11. To avail CENVAT on excisable items quoted, please show Excise duty separately and provide your Excise registration details in your offer.
12. **L-1 bidder will be decided on individual item basis & order will be placed on L-1 bidders only. In case, if two or more bidders quoted same L-1 price for any item in that case revised lowest prices will be taken again in sealed envelope only for those particular items from all the bidders whose prices will be same. Revised offers of these items will be opened on scheduled date & time & order will be placed on L-1 bidder.**
13. **Terms of Payment:** Our usual terms of payment are 30 days interest free credit after receipt and acceptance of material. The bidder accepting our usual terms will be given due weightage while comparing their prices with those of the other bidders offering payment terms different from our usual payment terms. More favourable terms of payment than our usual terms of payment will be given suitable additional weightage. Consideration of

- your quotation will, therefore, depend on the terms of payment stipulated by you. If you do not agree with our standard payment clause, you may indicate the mode of payment agreeable to you.
13. The buyer shall mean Hindustan Copper Limited. The seller means the person on whom the buyer has placed the contract. The goods or stores or the materials shall mean the subject material of the tender / contract.
 14. The prices quoted by the seller will remain firm during the validity of the contract and no increase whatsoever will be considered.
 15. **Packing** The material should be securely and properly packed and marked to avoid loss or damage in transit. Any goods shipped short or damaged due to faulty packing shall be replaced by the seller and the cost of such replacement including the cost of delivery to site shall be borne by the seller.
 16. **Inspection:** The material shall be normally inspected on receipt at our end only or otherwise as specified in the special terms & conditions.
 17. **Rejection and Removal of Rejected goods:-** If testing and inspection reveals that the goods do not comply with the specifications and requirement, it will be rejected. The rejected goods will have to be collected by the supplier at his own cost within one month on receipt of rejection advice from HCL/KCC. The rejected goods shall be lying at the risk & cost of the supplier at our end. HCL/KCC reserves the right to impose ground rent at its discretion, if goods are not removed within one month.
 18. **Liquidated Damages:** Failure to effect supplies by the specified date will make the seller liable to liquidated damages at the rate of 1/2% per week or part thereof of the value of the un-delivered quantity subject to a maximum of 5% of the value of purchase order. The buyer will also have the option to purchase the goods elsewhere with due notice to the supplier at the supplier's risk and cost. In this re-purchase, the seller will be liable to pay any loss, if sustained by the buyer.
 19. **Risk Purchase:** Whenever seller fails to supply as per contract, HCL will be at liberty to buy the product from other source at suppliers cost and risk.
 20. "HCL" reserves the right to reject any or all the offers and award in part or in whole the contract at its sole discretion without assigning any reasons thereof.
 21. **Validity:** The Quotation should be **valid for 90 days** from the date of opening of offer.
 22. In case your firm is an SSI unit registered with NSIC, please confirm the same with documentary evidence along with the offer.
 23. We do not pay overdue interest. Further, all bank charges will be to your account.
 24. In case the tenderer is an authorized distributor/authorized stockiest / authorized dealer of the item (s) quoted, copy of valid authorization certificate of the principals is to be submitted with offer along with price list, if any.
 25. **Recovery of Sum Due:** Whenever any claim against the supplier for payment of any sum of money arises out of or under the order HCL/KCC Khetri Nagar shall be entitled to recover such sums from any sum when due or which at any time thereafter may become due from the vendor under this or any other order with HCL and should this sum be not sufficient to cover the recoverable amount, the supplier shall pay to HCL/KCC Khetri Nagar on demand the balance remaining due immediately.
 26. **Force Majeure Clause:** Neither HCL nor the supplier shall be held responsible or considered to be in default, if the execution of the work is delayed/ interrupted due to cause (s) such as act of God, Natural Calamities, War, Major Civil Commotion, Fire, Storms, Floods, Strike or Lock Outs and Bundhs or any other causes which in the absolute discretion of HCL authorities is beyond the supplier's control. In such an event, either party shall not compensate the other for the loss that might accrue or might have accrued because of the effect of such event up on the execution of the order.
 27. **Arbitration:** All questions, disputes or differences of any kind whatsoever arising out of or relating to the contract shall be referred within **two months** of dispute by the parties to this contract for decision to a sole Arbitrator who shall be Project Head KCC or any officer of HCL nominated by the said Project Head in his behalf. In the event of such an Arbitrator to whom the matter is originally referred, is transferred or vacates his office by resignation or otherwise refuses to act or is incapable of acting for any reasons whatsoever the Project Head shall appoint another person to act as Arbitrator in his place in accordance with the terms of this contract. Such person shall be entitled to proceed from the stage at which it was left by his predecessor. There shall be no objection to any such appointment that the Arbitrator appointed is an officer of the Company or that he had to deal with the matter to which this contract relates or that in the course of his duty as such officer he has expressed views on all or any of the matters in dispute or difference. No person other than the Project Head or his nominee can act as Arbitrator. The venue of arbitration shall be KCC, Khetri Nagar (Rajasthan). The award of the Arbitrator shall be final and binding on the parties of this agreement. Subject to the above, the provision of Arbitration & Reconciliation Act, 1996, and of all the rules there under and all statutory modifications thereof shall govern such arbitration proceedings and shall be deemed to apply to and be incorporated in this contract.
 28. **Jurisdiction of Courts:** Any cause of action arising out of this contract will be subject to the Jurisdiction of Khetri, District – Jhunjhunu only.
 29. Central & State Govt. Rules & Regulations: -
 - a. You shall have observed all the state & central Govt. Rules, Regulations & acts wherever applicable.
 - b. The works during its progress can also be inspected by the Chief Technical Examiner / Technical Examiner of Central Vigilance Commission or by an officer of vigilance cell of HCL independently ab initio / on behalf of the Engineer –in –charge.

30. In case, a tenderer submits their quotation, it will be deemed as confirmed / in agreement with the above terms & conditions, if the said tenderer does not give their own terms & conditions.
31. Please mention your Tax Identification No. (TIN) in your quotation.
32. In case you do not quote, please send your regret letter else your name may be deleted from the mailing list.
33. **POLICY FOR MSEs UNDER PUBLIC PROCUREMENT BILL 2012**: Those MSEs which are registered with Districts Industries Centers (DICs) / Khadi& Village Industries Commissions (KVIC)/ Khadi& Village Industries Board (KVIB) / Coir Board/ NSIC/Directorate of Handicrafts and Handloom or any other body specified by Ministry of Micro, Small & Medium enterprises are eligible for availing benefits under the Public Procurement Policy. In tender, participating MSEs quoting price within band of L1+15% shall also be allowed to supply a portion of requirement by bringing down their price to L1 price in a situation where L1 price is from someone other than an MSE. Such MSEs shall be allowed to supply up to 20% of total tendered value. In case of more than one such MSE, the supply will be shared proportionately. Policy is meant for procurement of only goods produced and services rendered by MSEs. A sub-target of 4% (Four per cent) is earmarked for procurement from MSEs owned by Scheduled Caste (SC)/ Scheduled Tribe (ST) Entrepreneurs. However, in the event of failure of such MSEs to participate in tender process or meet tender requirements and L1 Price, 4% sub-target for procurement earmarked for MSEs owned by SC/ST Entrepreneurs will be met from other MSEs. MSEs participating against the tender should submit the necessary documentary evidence for availing the facility of the policy. The MSEs owned by SC/ST has to submit caste certificate issued by competent authority along with the offer

ANNEXURE – ‘B’

No.HCL/KCC/PUR/2017/GS/10/9354/RFQ-6879

Dated:05/06/2017

“PRICE BID FORMAT

NAME & AND ADDRESS OF THE PARTY:

QUOTATION NO. & DATE

Item No.	Material code	DESCRIPTION	BASIC RATE Per Kg.	EXCISE DUTY %	CST/ VAT %	TPT	other , if any	Total
1	191000017	WHITE METAL LEAD BASE-75% LEAD 15% ANTIMONY AND 10% TIN						

Note :

- 1) L-1 bidder will be decided on individual item basis.
- 2) Please submit your price bid strictly as per the format given above
- 3) It may be noted that no other charges / amount shall be payable by HCL unless clearly stipulated in the Price – Bid.
- 4) If the rates / charges under any column are inclusive in the basic price, the same should be clearly mentioned as ‘included’ or ‘free of charge’.

**SIGNATURE OF TENDERER WITH
NAME, DESIGNATION & OFFICIAL STAMP.**

To be submitted in Duplicate

MANDATE FORM FOR ELECTRONIC PAYMENT THROUGH INTERNET

To
Hindustan Copper Limited,
Khetri Copper Complex,
PO: Khetrinagar – 333504,
Dist. Jhunjhunu (Raj.) INDIA

Dear Sir,

Sub: Authorization for release of payment due from Hindustan Copper Limited, Khetri Copper Complex, henceforth through Electronic fund transfer by Internet Mode.

(Please fill in the information in CAPITAL LETTERS. Please TICK wherever it is applicable)

1. Name of the Party :
2. Address of the Party :
.....
.....
City:.....Pin Code.....
E-mail Id:.....
Permanent Account Number:.....

3. Particulars of Bank:

Bank Name		Branch Name																																																							
Branch Place		Branch City																																																							
Pin Code		Branch Code	<table border="1"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																																																						
Account Type	Savings	Current	Cash Credit																																																						
Account Number(as appearing in the Cheque Book)	<table border="1"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																			<table border="1"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																			<table border="1"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																		
RTGS / IFSC Code	<table border="1"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																																																								
Please attach Xerox Copy of a cheque of your bank for ensuring accuracy of the bank name, branch name and code number																																																									

4. Date from which the mandate should be effective :

I hereby declare that the particulars given above are correct and complete. If any transaction is delayed or not effected for reasons of incomplete or incorrect information, I shall not hold Hindustan Copper Limited responsible. I also undertake to advise any change in the particulars of my account to facilitate updation of records for purpose of credit of amount through Internet.

Place:

Date:

Signature of the Party/Authorized Signatory

Certified that particulars furnished above are correct as per our records.

Bank's Stamp:

Date:

(Signature of the Authorized Official from the Banks)

To be submitted in Duplicate

MANDATE FORM FOR ELECTRONIC PAYMENT THROUGH INTERNET (For RTGS Facility)

To

Hindustan Copper Limited,
Khetri Copper Complex,
PO: Khetrinagar – 333504,
Dist. Jhunjhunu (Raj.) INDIA
Dear Sir,

Sub: Authorization for release of payment due from Hindustan Copper Limited, Khetri Copper Complex,
henceforth through Electronic fund transfer RTGS.

(Please fill in the information in CAPITAL LETTERS. Please TICK wherever it is applicable)

1. Name of the Party :

2. Address of the Party :

.....

.....

City:.....Pin Code.....

E-mail Id:.....

Permanent Account Number:.....

3. Particulars of Bank:

Bank Name				Branch Name			
Branch Place				Branch City			
Pin Code				Branch Code			
MICR No							
(9 Digits code number appearing on the MICR Band of the cheque supplied by the Bank. Please attach Xerox copy of a cheque of your bank for ensuring accuracy of the Bank name, Branch name and Code number)							
Account Type		Savings		Current		Cash Credit	
Account Number(as appearing in the Cheque Book)							
RTGS/IFSC Code							

4. Date from which the mandate should be effective:

I hereby declare that the particulars given above are correct and complete. If any transaction is delayed or not effected for reasons of incomplete or incorrect information, I shall not hold Hindustan Copper Limited responsible. I also undertake to advise any change in the particulars of my account to facilitate updation of records for purpose of credit of amount through RTGS.

Place:

Date:

Signature of the Party/Authorized Signatory

Certified that particulars furnished above are correct as per our records.

Bank's Stamp:

Date:

(Signature of the Authorized Official from the Banks)

N.B.: 1) RTGS facilities Centre:

New Delhi, Chandigarh, Kanpur, Jaipur, Ahmedabad, Mumbai, Nagpur, Hyderabad, Bangalore,
Chennai, Trivandrum, Kolkata, Bhubaneswar, Guwahati, Patna.